

National Broadcasting Act, 1993

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 6

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National Broadcasting Act, 2049

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Royal Seal and Publication Date

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2050.2.27

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Amending Acts

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1. Some Nepal Acts Amendment Act Relating to Communications. 2075 2075.10.18

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Certification and Publication Date

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2063.4.23

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2. Act to Revive the Provisions of Some Nepal Acts, 2063 2063.4.23

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3. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.1.7

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4. Act to Amend Some Nepal Acts to Maintain Gender Equality and End Gender-Based Violence, 2072
2072.6.14

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5. Some Nepal Acts Amendment Act, 2072 2072.11.13

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6. Some Nepal Acts Amendment Act, 2075 2075.11.19

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Act No. 6 of the year 2049

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An Act made to provide for national broadcasting

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Preamble: Amended by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.

To protect and promote the freedom of expression and the right to be well-informed of the people guaranteed by the Constitution, and to bring the economic, social and cultural activities of the country to the public through the broadcasting system, creating an environment of equality, mutual goodwill and harmony among all castes, languages, classes, regions and religious denominations, and to raise public awareness through the medium of the national language as well, Amended by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.

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Since it is desirable to make legal provisions regarding the uninterrupted flow of information so that the general public may obtain information of impartial and authentic news and information occurring at the national and international level by making the means of broadcasting reliable, effective and strong through the use of modern technology available in the field of information and communications,

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? ? Parliament has enacted this Act in the twenty-second year of the reign of His Majesty King Birendra Bir Bikram Shah Dev.

2. ??????????? ??? ? ??????????: (?) ?? ????? ??? "?????????? ?????????? ??, ??????" ?????? ? ? 1. Short Title and Commencement: (1) This Act may be cited as the "National Broadcasting Act, 2049".

(?) ?? ?? ?????????? ?????????? ?????? ? (2) This Act shall come into force immediately.

2. ?????????: ????? ?? ??????????? ?????? ????? ?????????? ?? ?????,-
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Definitions: Unless the subject or context otherwise requires, in this Act,- (?) "?????????" ????????? ??????,
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???????? ????? ??????? ????? ? (?) "Broadcasting" means a radio communication service transmitted in such a way that the general public can receive information by means of signals, sound, images, pictures or other similar types. (?) "?????????????" ????????? ??????? ?? ??????????????????? ?????????????????? ????????? ????? ?????????
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(?) ?? ?? ?????? ???? ???. ????????? ?????????????? ?????????? ???? ?????????? ?????? ??
 ??????? ???? ?????????? ?????? ??? ?????? ?????? ? (2) For the allocation of FM radio frequencies to be
 done pursuant to this Act, the concerned province or local level shall request the Ministry.

(?) (3) Until such time as the local level or province has not made a law regarding licensing, renewal and regulation pursuant to sub-section (1), the licensing, renewal and regulation of such matter shall be according to this Act or the rules made under this Act.

4.

Not to Broadcast Without Licence: No person shall broadcast any programme without obtaining a licence pursuant to this Act.

5. Application to be Made for Licence: A person or organised institution wishing to broadcast any programme by satellite, cable or other means of communication in any place within Nepal Removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. or to establish a frequency modulation broadcasting system and broadcast educational, entertaining and Amended by the Some Nepal Acts Amendment Ordinance Relating to Communications, 2062 and automatically revived by the Act to Revive the Provisions of Some Nepal Acts, 2063. news-oriented programmes shall submit an application to the Government of Nepal in the prescribed format along with the prescribed fee.

6. Licence may be Granted: Upon receipt of an application under Section 5, the Government of Nepal may, after making necessary inquiry into such application, grant a licence to the applicant in the prescribed format for broadcasting programmes subject to compliance with the prescribed conditions.

7. Broadcasting may be Prohibited: Having regard to the nation and national interest, the Government of Nepal may, by publishing a notice in the Nepal Gazette, prohibit the broadcasting from a broadcasting institution of any programme relating to a particular subject, event or area for a period not exceeding six months at a time.

8.

Licence of Broadcasting Institution may be Cancelled: Declared invalid and void by the Supreme Court in

Advocate Rajiv Bastola vs. Government of Nepal, Office of the Prime Minister and Council of Ministers, Writ No. 069-WS-0025, dated 2070.9.25. (1) If a broadcasting institution broadcasts any programme contrary to this Act or the rules made under this Act, the Government of Nepal may cancel the licence obtained by such broadcasting institution.

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????? ?????? ????????? ? Declared invalid and void by the Supreme Court in Advocate Rajiv Bastola vs. Government of Nepal, Office of the Prime Minister and Council of Ministers, Writ No. 069-WS-0025, dated 2070.9.25. (2) Before cancelling a licence under sub-section (1), the Government of Nepal shall give such broadcasting institution a reasonable opportunity to submit its explanation.

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Special Provision Regarding Establishment of Earth Station: (1) If any person or Amended by the Some Nepal Acts Amendment Ordinance Relating to Communications, 2062 and automatically revived by the Act to Revive the Provisions of Some Nepal Acts, 2063. organised institution, or a domestic and foreign person or organised institution in joint venture, wishes to establish an earth station relating to satellite and cable television and broadcast any programme, an application shall be submitted to the Government of Nepal for approval.

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